SUPERTECH TWIN TOWERS

THE BIGGER THEY ARE...

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Photograph by BANDEEP SINGH

On August 28, 2022, the Supreme Court-ordered demolition saw Supertech's Apex and Ceyane skyscrapers in Noida collapse into rubble. That, however, is not the end of it—the SC order stated that the case was "replete with instances which highlight the collusion between the officers of NOIDA with Supertech and its management". Even as the UP vigilance booked 24 former and serving Noida officials for corruption in October last year, no arrests have been made yet. The story goes back to 2004, when Supertech was granted land in Noida's Sector 93A for its Emerald Court housing project. Between 2004 and 2012, it was granted three revisions of its sanctioned building plan, going from 14 towers of 10 floors each to 15 towers of 11 floors each, along with two 40-storey skyscrapers, in violation of several laws. On the Emerald Court RWA's plea, the Allahabad High Court in 2014 ordered the twin towers' demolition, which was upheld by the SC in August 2021.

VIOLATIONS: WHAT THE SC SAID

The sanction given for the second revised plan (2009) was in clear breach of the building regulations, since it violated the minimum distance to be maintained between buildings (16 metres)

Even when this issue was highlighted by the chief fire officer, it received no response from NOIDA officials and led to no investigation. This violated fire safety norms, which require a mandated amount of space for fire tenders to operate

Construction of the two skyscrapers appears to have begun before permissions were granted; the work began in July 2009, five months before the second revised plan was passed. Second, the foundations constructed were for 40-storey buildings (for which permisson was granted only in 2012), not for the 24 storeys allowed in 2009

The plan revisions to develop the skyscrapers obliterated a garden that was supposed to sit adjacent to an existing tower; permission was not sought from the RWA to make this change. This violated the UP Ownership of Flats Act and UP Apartments Act

"The plan sanctioned by NOIDA was contrary to: (a) the building regulations; (b) the mandatory distance between building blocks; and (c) the movement space required, as a result of which the rights of the apartment owners and the safety of their apartment blocks have been seriously affected"

– SUPREME COURT *in its Aug. 2021 order*

